

2885/2013 on 25 March, 2015

Author: Arijit Banerjee

Bench: Arijit Banerjee

1

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aks C.O. 2885 of 2013 with C.O. 3991 of 2013 Mr. S. P.Mukherjee Mr. Partha Ganguly ... for the petitioner in C.O. 2885/13 and opposite party in C.O.3991/13.

Mr. Ayan Banerjee Mr. Soumo Choudhury ... for the petitioner in C.O. 3991/13 and opposite party in C.O. 2885/13.

C.O. 2885 of 2013 is an application filed by the husband challenging the order dated 20th July, 2013 passed by the learned Additional District Judge at Arambag, Hooghly on an application under Section 24 of the Hindu Marriage Act in connection with Matrimonial Suit No. 170 of 2012 which has been instituted by the husband for divorce. C.O. 3991 of 2013 is an application of the wife challenging the same order of the learned Additional District Judge at Arambag, Hooghly. Accordingly, both the revisional applications are taken up together and disposed of by this common order.

By the order impugned, the learned trial Judge has directed the husband to pay Rs. 4,000/- per month to the wife including maintenance of the daughter with effect from the month of July, 2013 and additional litigation cost of Rs.5,000/-, failing which the suit for divorce will be dismissed. I am a little surprised to note that it is recorded in the order that the husband and the wife were examined by the court separately in connection with the application under Section 24 of the Hindu Marriage Act. It is not clear if the parties were offered for cross- examination by other side's counsel. Further, there is absolutely no discussion as to how the figure of Rs.4,000/- was arrived at. No reason has been given why the amount should be Rs.4,000/- and not more or less.

In my opinion, any judicial or quasi-judicial order must be supported by reason. The order impugned does not contain any reason. Both the husband and the wife are aggrieved by the said order. I feel that ends of justice will be served if the order is set aside and the matter is remanded back to the learned trial Judge for consideration afresh.

Accordingly, the order under challenge in both the review applications is set aside. Learned Judge shall consider the application under Section 24 of the Hindu Marriage Act afresh upon recording proper evidence following due process of law. Both the parties shall produce before the learned trial

court all essential documents which may be required for adjudication of the application under Section 24 of the Hindu Marriage Act.

I have not gone into the merits of the case. All points are left open for the learned trial Judge to decide afresh. The order to be passed afresh must be supported by proper reason. Learned Judge will decide the application under Section 24 of the Hindu Marriage Act without being influenced by any observation made in this order. The application under Section 24 of the Hindu Marriage Act will be disposed of as expeditiously as possible and in any event within a period of six weeks from the date of communication of this order. In the meantime, the husband shall go on paying the maintenance @ Rs.3,000/- per month as was directed by this court by its order dated 2nd September, 2013.

With the aforesaid observations, both the C.O. 2885 of 2014 and C.O. 3991 of 2013 are disposed of.

Certified copy of this order, if applied for, be supplied to the parties on priority basis.

(Arijit Banerjee, J.)